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Case Number: 24STCV13642 Hearing Date: July 28, 2026 Dept: 1

Preliminary Approval of Class Action

Settlement

Department SSC-1

Hon. Theresa M. Traber

Steven Weimer v. Digistream Los Angeles, Inc, et al.

Case

No.: 24STCV13642

Hearing: July 28, 2026

TENTATIVE RULING

The

Court's tentative ruling is to GRANT preliminary approval contingent on the parties addressing the following:

1. The escalator clause at Settlement Agreement

¶38 provides Defendant with the option to shorten the Class and PAGA Periods in lieu of increasing the Gross Settlement Amount. The end dates should be confirmed prior to preliminary approval being granted and notice being distributed. Based on current records, the parties and/or administrator should review and verify the workweek total and confirm the end dates of the Class and PAGA Periods. Revise the agreement and notice if necessary.

2. At Settlement Agreement ¶¶46 and ¶¶60, references to the “35% portion” of the PAGA Payment allocated for PAGA Members should be revised to say “25% portion” consistent with the PAGA payment allocation described at ¶¶44.

The Court

orders the parties to submit supplemental briefing and supporting declarations as well as revised versions of the Settlement Agreement and Class Notice to address the Court’s concerns. The parties are directed to submit the revised signed Settlement Agreement along with a red-lined copy showing all changes and a revised Class Notice with a red-lined copy showing the changes to the notice. Please ensure that all revisions of the Settlement Agreement are properly incorporated into the revised Class Notice. Also review the proposed Order, revise it to conform to the final settlement terms, and file the revised proposed Order with the Court.

All

supplemental papers are due to be filed by

_____. The

Court sets a non-appearance case review for _____

to review the supplemental papers. The

hearing on the motion for final approval is scheduled for

_____ at 10:30 a.m. in Department 1.

BACKGROUND

Plaintiff

Steven Weimer sued his former employer, Defendants Digistream Los Angeles, Inc. and Digistream Investigations, Inc., for alleged wage and hour violations. Defendants are a private surveillance and investigation firm specializing in insurance claim investigations. Plaintiff seeks to represent a class of Defendants’ current and former non-exempt employees.

On May 29, 2024, Plaintiff submitted

a letter to the California Labor and Workforce Development Agency (LWDA) advising the LWDA of his intent to seek penalties under the Private Attorneys General Act (PAGA).

On

May 30, 2024, Plaintiff filed a class action complaint asserting causes of action for: (1) Violation of Cal. Labor Code §§ 510 and 1198 (Unpaid Overtime) (2) Violation of Cal. Labor Code §§ 226.7 and 512(a) (Unpaid Meal Period Premiums) (3) Violation of Cal. Labor Code § 226.7 (Unpaid Rest Period Premiums) (4) Violation of Cal. Labor Code §§ 1194, 1197 and 1197.1 (Unpaid Minimum Wages) (5) Violation of Cal. Labor Code §§ 201, 202 and 203 (Final Wages Not Timely Paid) (6) Violation of Labor Code §§ 204 and 210 (Wages Not Timely Paid During Employment) (7) Violation of Cal. Labor Code § 226(a) (Failure to Provide Accurate Wage Statements) (8) Violation of Cal. Business & Professions Code § 17200, et seq. ("Digistream Class Action").

On

August 26, 2024, Plaintiff filed a separate representative Complaint with the Los Angeles Superior Court on behalf of the state pursuant Private Attorneys General Act (PAGA), State of California ex rel. Steven Weimer v. Digistream Los Angeles, Inc. et al. Case No. 24TRCV02861 ("Digistream PAGA Action").

On February 18, 2026, the Parties

attended mediation with the Hon. Daniel Buckley (Ret.), which ultimately resulted in settlement. The terms of settlement were finalized in the long-form Joint Stipulation of Class Action and PAGA Settlement ("Settlement Agreement"), a copy of which is attached to the Declaration of Heather Davis ("Davis Decl.") as Exhibit 2.

Following

the execution of the Settlement Agreement, on or about April 23, 2026, the Parties filed a stipulation to consolidate the Digistream Class Action and Digistream PAGA Action, which the Court granted on May 13, 2026.

Now

before the Court is the Motion for Preliminary Approval of the Settlement Agreement.

SETTLEMENT CLASS DEFINITION

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"Class"

or "Class Members" means all current and former hourly-paid, non-exempt employees of any of the Defendants, who were employed by any of the Defendants in the State of California at any time during the Class Period. (¶6)

“Class

Period” means the period from May 30, 2020, through April 19, 2026. (¶17)

“PAGA

Members” means all current and former hourly-paid non-exempt employees of Defendants who were employed by Defendants in the state of California at any time during the PAGA Period. (¶22)

“PAGA

Period” means the period from May 30, 2023, through April 19, 2026. (¶21)

“Participating

Class Members” means all Class Members who do not submit valid and timely Requests for Exclusion. (¶24)

TERMS OF SETTLEMENT AGREEMENT

The essential terms are as follows:

The Gross

Settlement Amount (“GSA”) is \$750,000, non-reversionary.
(¶14)

o Escalator Clause: Defendants have represented there are approximately 18,175 Workweeks in the Class Period. Should the actual number of Workweeks in the Class Period increase by more than fifteen percent (15%) (i.e. by more than 2,726 Workweeks) Defendants shall have the option to either: (1) increase the Gross Settlement Amount on a pro-rata basis equal to the percentage increase in the number of Workweeks worked by the Class Members above 15%. For example, if the number of Workweeks increases by 16%, the Gross Settlement Amount will increase by 1%; or (2) cut off the end of the Class and PAGA Period so that the workweeks in the Class Period do not exceed 20,901. If Defendant elects to cut off the end of the Class/PAGA Period it shall not be required to increase the Gross Settlement Amount.

Defendant's Counsel shall provide a declaration to the Court no later than nine (9) court days prior to the hearing on Plaintiff's Motion for Preliminary Approval confirming whether the escalation clause has been triggered and if so whether it is electing to increase the Gross Settlement Amount or revise the Class Period. (¶38)

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The Net

Settlement Amount ("Net") (\$408,010) is the GSA minus the following:

- o Up to \$250,000

(33 1/3%) for

attorney fees (¶4);

- o Up to \$25,000 for litigation costs (Ibid.);

- o Up to \$7,500 for an Enhancement Payment to the Named Plaintiff (¶42);

- o Up to \$9,490 for settlement administration costs (¶35); and

- o Payment of \$50,000 PAGA penalty (75% or \$37,500 to the LWDA). (¶20)

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Defendants'

share of any employer payroll taxes and other required employer withholdings due on the Individual Settlement Payments, including, but not limited to, Defendants' FICA and FUTA contributions, shall be paid separate and apart from the Gross Settlement Amount. (¶62)

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There

is no claim form requirement. (Notice p. 3)

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Individual Settlement Payment Calculation: The Settlement Administrator will calculate the total Workweeks for all Participating Class Members by adding the number of Workweeks worked by each

Participating Class Member during the Class Period. The respective Workweeks for each Participating Class Member will be divided by the total Workweeks for all Participating Class Members, resulting in the Payment Ratio for each Participating Class Member. Each Participating Class Member's Payment Ratio will then be multiplied by the Net Settlement Amount to calculate each Participating Class Member's estimated share of the Net Settlement Amount. (§46.a)

o PAGA Payments: The Settlement Administrator will calculate the total pay periods for all PAGA Members by adding the number of pay periods worked by each PAGA Member during the PAGA Period. The respective pay periods for each PAGA Member will then be divided by the total pay periods for all PAGA Members, resulting in the Payment Ratio for each PAGA Member. Each PAGA Member's Payment Ratio will then be multiplied by the employee portion of the PAGA Payment to calculate each PAGA Member's estimated share of the PAGA Payment. PAGA Members shall receive this portion of their Individual Settlement Payment regardless of whether they opt out of the participation regarding the class claims. (§46.b)

o Tax Allocation: Participating Class Member's Individual Settlement

Payments will be allocated as follows: 10% as wages, 40% as interest and 50% penalties. The PAGA Portion of each Individual Settlement Payment

will be allocated 100% as Penalties. (§46.c)

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Response Deadline: "Response Deadline"

means the date sixty (60) days after the Settlement Administrator mails Notice to Class Members and the last date on which Class Members may submit Requests for Exclusion, written objections to the Settlement, or Workweek Disputes. In the event the 60th day falls on a Sunday or Federal holiday, the Response Deadline will be extended to the next day on which the U.S. Postal Service is open. (§132)

o

If ten percent (10%) or more of the Class Members (rounded to the next whole number) elect not to participate in the Settlement, Defendants may, at its election, rescind the Settlement Agreement and all actions taken in furtherance of it will be thereby null and void. (§156)

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Funding

of Settlement: Within fourteen (14) days of the Effective Date, Defendants will deposit the Gross Settlement Amount and all applicable employer-side payroll taxes into a Qualified Settlement Fund ("QSF") to be established by the Settlement Administrator. Defendants shall provide all information necessary for the Settlement Administrator to calculate necessary payroll taxes including its official name, 8 digit state unemployment insurance tax ID number, and other information requested by the Settlement Administrator, no later than seven (7) days of the Effective Date. (¶39)

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Distribution:

Within fourteen (14) days of the complete funding of the Settlement, the Settlement Administrator will issue payments for: (a) Individual Settlement Payments; (b) the PAGA Payment to the Labor and Workforce Development Agency; (c) the Class Representative Enhancement Payment; (d) Class Counsel's Fees and Costs; and (e) Settlement Administration Costs. (¶40)

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Uncashed Settlement Checks: Any checks issued by the Settlement Administrator to Participating Class Members and PAGA Members will be negotiable for at least one hundred eighty (180) days. If a Participating Class Member or PAGA Member does not cash his or her Settlement Check or PAGA payment check within 180 days, the uncashed funds, subject to Court approval, shall be distributed to the Controller of the State of California to be held pursuant to the Unclaimed Property Law, California Civil Code §1500, et. seq. for the benefit of those Participating Class Members and PAGA Members who did not cash their checks until such time that they claim their property. The Parties agree that this disposition results in no "unpaid residue" under California Civil Procedure Code § 384, as the entire Net Settlement Amount will be paid out to Participating Class Members and the entire 35% portion of the PAGA Payment will be paid out to the PAGA Members, whether or not they all cash their Settlement Checks or PAGA payment checks. Therefore, Defendants will not be required to pay any interest on such amounts. (¶60)

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The settlement administrator will be Apex Class Action Administration. (¶34)

The

proposed Settlement Agreement was submitted to the LWDA on July 6, 2026. (Davis Decl., Exhibit 3.)

Participating class members and the named Plaintiff will release certain claims against Defendant. (See further discussion below)

ANALYSIS OF SETTLEMENT AGREEMENT

1. Does a presumption of fairness exist?

Was the settlement reached through arm's-length bargaining? On February 18, 2026, the Parties attended mediation with the Hon. Daniel Buckley (Ret.), which ultimately resulted in settlement. (Davis Decl., ¶¶21-23.)

1.

Were

investigation and discovery sufficient to allow counsel and the court to act intelligently? Class Counsel represents that prior to mediation, Defendants provided Plaintiff with informal discovery including a randomly selected 20% sampling of time and payroll records during the covered period. (Id. at ¶18.) In addition, Defendants also produced all policies in place during the class period relating to meal breaks, rest breaks, timekeeping, the payment of wages and other relevant areas of investigation. (Id. at ¶19.) Defendants also provided Plaintiff with data points regarding the size and composition of the class including the number of current versus former employees, the total workweeks and pay periods worked by the Class, the number of pay periods within the PAGA Period and other relevant information. (Id. at ¶20.)

2.

Is

counsel experienced in similar litigation? Yes. Class Counsel is experienced in class action litigation, including wage and hour class actions. (Id. at ¶9.)

3.

What

percentage of the class has objected? This cannot be determined until the fairness hearing. See Weil & Brown, Cal. Practice Guide:

Civil Procedure Before Trial (The Rutter Group 2014) ¶ 14:139.18, (“Should the court receive objections to the proposed settlement, it will consider and either sustain or overrule them at the fairness hearing.”).

CONCLUSION: The settlement is entitled to a presumption of fairness.

2.

Is the settlement fair, adequate, and reasonable?

1.

Strength of Plaintiff’s case. “The most important factor is the strength of the case for plaintiff on the merits, balanced against the amount offered in settlement.” (Kullar v. Foot Locker Retail, Inc. (2008) 168 Cal.App.4th 116, 130.) Here, Class Counsel has provided information, summarized below, regarding the estimated values of the class claims alleged:

Violation

Maximum Exposure

Realistic Exposure

Meal

Period Violations

\$545,522.63

\$136,380.66

Rest

Period Violations

\$545,522.63

\$136,380.66

Unpaid
Wages and Overtime

\$564,333.75

\$141,083.44

Waiting
Time Penalties

\$1,450,656.00

\$181,332.00

Wage
Statement Penalties

\$453,500.00

\$56,687.00

PAGA
Penalties

\$1,507,408.00

\$94,213.00

Total

\$5,066,943.01

\$746,076.76

(Davis
Decl., ¶¶46-71.)

2. Risk,
expense, complexity and likely duration of further litigation. Given the nature of the class claims, the
case is likely to be expensive and lengthy to try. Procedural hurdles (e.g., motion practice and

appeals) are also likely to prolong the litigation as well as any recovery by the class members.

3. Risk of

maintaining class action status through trial. Even if a class is certified, there is always a risk of decertification. (See *Weinstat v. Dentsply Intern., Inc.* (2010) 180 Cal.App.4th 1213, 1226 (“Our Supreme Court has recognized that trial courts should retain some flexibility in conducting class actions, which means, under suitable circumstances, entertaining successive motions on certification if the court subsequently discovers that the propriety of a class action is not appropriate.”).)

4. Amount offered in settlement. Class Counsel

obtained a

\$750,000 non-reversionary

settlement. This is approximately 14.8% of Plaintiff’s estimated maximum recovery and 100.5% of the realistic recovery which, given the uncertain outcomes, is within the “ballpark” of reasonableness.

The settlement amount, if reduced by the

requested deductions, leaves approximately \$408,010 to be divided among approximately 459 class

members. Assuming full participation, the resulting payments will average approximately \$888.91 per class member.

5. Extent of discovery completed and stage of

the proceedings. As indicated above,

at the time of the settlement, Class Counsel had conducted sufficient discovery.

6. Experience and views of counsel. The settlement was negotiated and endorsed by

Class Counsel who, as indicated above, is experienced in class action litigation, including wage and hour class actions.

7. Presence of a governmental participant. This factor is not applicable here.

8. Reaction of the class members to the

proposed settlement. The class members’ reactions will not be known until they receive notice and are afforded an opportunity to object, opt-out and/or submit claim forms. This factor becomes relevant during the fairness hearing.

CONCLUSION: The settlement can be preliminarily deemed “fair, adequate, and reasonable.”

3.

Scope of the release

.
Release by Participating Class Members: Upon the complete funding of the Gross Settlement Amount and all applicable employer-side payroll taxes, Participating Class Members shall fully release and discharge the Released Parties from all claims, rights, demands, liabilities and causes of actions that are alleged, or reasonably could have been alleged, based on the facts alleged in the operative complaint in the Action, including factual claims regarding Defendants’ alleged: (i) failure to pay all regular wages, minimum wages and overtime wages due; (ii) failure to provide meal periods or compensation in lieu thereof; (iii) failure to provide rest periods or compensation in lieu thereof; (iv) failure to provide complete, accurate wage statements; (v) failure to pay wages timely at time of termination or resignation; (vi) failure to provide timely pay wages during employment; (vii) unfair business practices related to the alleged Labor Code violations, and (vii) interest and attorney’s fees during the Class Period. This release shall be binding on all Participating Class Members. (¶65)

o “Released Class

Claims” means all claims, rights, demands, liabilities and causes of actions that are alleged, or reasonably could have been alleged, based on the facts alleged in the operative complaint in the Action, including factual claims regarding Defendants’ alleged: (i) failure to pay all regular wages, minimum wages and overtime wages due; (ii) failure to provide meal periods or compensation in lieu thereof; (iii) failure to provide rest periods or compensation in lieu thereof; (iv) failure to provide complete, accurate wage statements; (v) failure to pay wages timely at time of termination or resignation; (vi) failure to provide timely pay wages during employment; and (vii) unfair business practices related to the alleged Labor Code violations, interest and attorney’s fees during the Class Period. This release shall apply to claims arising during the Class Period. (¶28)

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Release by the State of California and LWDA: Upon the

complete funding of the Gross Settlement Amount and all applicable employer-side payroll taxes, Plaintiff, as the PAGA Representative, the LWDA and the State of California, through Plaintiff as its agent and/or proxy, shall fully release and discharge the Released Parties from the Released PAGA Claims that arose during the PAGA Period. The Parties intend for this PAGA settlement to have claim preclusion, issue preclusion, or otherwise bar a representative action if an aggrieved employee were to bring a subsequent claim on behalf of the LWDA based on the same factual predicate as the Released PAGA Claims and covering the same time period. (¶66)

o

“Released PAGA Claims” means all claims under the California Labor Code Private Attorneys General Act of 2004 for civil penalties that could have been premised on the facts alleged both in the PAGA Letter to the LWDA and in the operative complaint including but not limited to penalties that could have been awarded pursuant to Labor Code sections 203, 204, 210, 226, 226.3, 226.7, 510, 512, 558, 1174.5, 1194, 1174(d), 1197.1, 1198, 1199, 2699 and the applicable IWC Wage Order. This release shall apply to claims arising during the PAGA Period. (¶29)

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“Released Parties” means Defendants and their past, present and/or future, direct and/or indirect, officers, directors, members, managers, agents, representatives, attorneys, insurers, partners, investors, owners, shareholders, administrators, parent companies, subsidiaries, affiliates, divisions, predecessors, successors, assigns, and joint venturers. (¶30)

.

Named Plaintiff will also provide a general release and CC § 1542 waiver. (¶67)

4.

May conditional class certification be granted?

1.

Standards

A detailed analysis of the elements required for class certification is not required, but it is advisable to review each

element when a class is being conditionally certified (*Amchem Products, Inc. v. Winsor* (1997) 521 U.S. 620, 622-627.) The trial court can appropriately utilize a

different standard to determine the propriety of a settlement class as opposed to a litigation class certification.

Specifically, a lesser standard of scrutiny is used for settlement cases. (*Dunk* at 1807, fn 19.)

Finally, the Court is under no “ironclad requirement” to conduct an evidentiary hearing to consider whether the prerequisites for class certification have been satisfied. (*Wershba* at 240.)

2.

Analysis

a.

Numerosity. There are approximately 459 class members. (*Memo ISO Prelim* at 12:16-17.) This element is met.

b.

Ascertainability. The proposed class is defined above. The class definition is “precise, objective and presently ascertainable.” (*Sevidal v. Target Corp.* (2010) 189 Cal.App.4th 905, 919.) The class members are identifiable from Defendant’s records. (*Memo ISO Prelim* at 12:19-21.)

c.

Community of interest. “The community of interest requirement involves three factors: ‘(1) predominant common questions of law or fact; (2) class representatives with claims or defenses typical of the class; and (3) class representatives who can adequately represent the class.’” (*Linder v. Thrifty Oil Co.* (2000) 23 Cal.4th 429, 435.)

As to commonality, Plaintiff alleges that Defendants denied compliant meal and rest periods to employees, required employees to perform work off-the-clock, and failed to fully compensate employees for all time actually worked. These policies and practices meant that Defendants failed to pay minimum and overtime wages, and other related claims. Plaintiff alleges that Defendants’ policies and practices were uniform as to all Class Members. (*Memo ISO Prelim* at 13:8-14.)

As to typicality, Plaintiff alleges that his claims are similar to that of the other Class Members and arise out of the same alleged facts and course of conduct. Plaintiff's claims are typical of the other Class Members because he seeks the exact same relief for the alleged violations. (Id. at 13:22-26.)

As to adequacy, Plaintiff represents that he is aware of his duties as class representative and has participated in the litigation. (Declaration of Steven Weimer, ¶¶4-13.)

d.

Adequacy

of class counsel. As indicated above, Class Counsel has shown experience in class action litigation, including wage and hour class actions.

e.

Superiority. Given

the relatively small size of the individual claims, a class action appears to be superior to separate actions by the class members.

CONCLUSION: The class may be conditionally certified since the prerequisites of class certification have been satisfied.

5.

Is the notice proper?

1.

Content

of class notice. The proposed notice is attached to the Settlement Agreement as Exhibit A. Its content appears to be acceptable. It includes information such as: a summary of the litigation; the nature of the settlement; the terms of the settlement agreement; the proposed deductions from the gross settlement amount (attorney fees and costs, enhancement awards, and administration costs); the procedures and deadlines for participating in, opting out of, or objecting to, the settlement; the consequences of participating in, opting out of, or objecting to, the settlement; and the date, time, and place of the final approval hearing.

Notice will be given in English and Spanish.

(¶48.j)

2.

Method
of class notice.

Within fourteen (14) days of Preliminary Approval, Defendants will provide the Class List to the Settlement Administrator. This is a material term of the Agreement, and if Defendants fail to comply, Plaintiff shall have the right to void the Agreement. (¶49)

Within fourteen
(14) days after receiving the Class List from Defendants, the Settlement Administrator will mail the Notice to all Class Members via regular First-Class U.S. Mail, using the most current, known mailing addresses identified in the Class List. (¶50)

Prior to mailing,
the Settlement Administrator will perform a search based on the National Change of Address Database for information to update and correct for any known or identifiable address changes. Any Notice returned to the Settlement Administrator as non-deliverable on or before the Response Deadline will be sent promptly via regular First-Class U.S. Mail to the forwarding address affixed thereto and the Settlement Administrator will indicate the date of such re-mailing on the Notice. If no forwarding address is provided, the Settlement Administrator will promptly attempt to determine the correct address using a skip-trace, or other search using the name, address and/or Social Security number of the Class Member involved, and will then perform a single re-mailing. If any notice sent to a Class Member by the Settlement Administrator is returned as undeliverable to a current employee, then Defendants shall make all reasonable efforts to obtain the current address from the Class Member and provide the same within seven (7) days of notice from the Settlement Administrator. Those Class Members who receive a re-mailed Notice, whether by skip-trace or by request, will have between the later of (a) an additional fifteen (15) days or (b) the Response Deadline to postmark a Request for Exclusion, written objection, or workweek dispute. (¶51)

Notice of Final
Judgment will be posted on the Settlement Administrator's website. (¶48.i)

3.

Cost

of class notice. As indicated above, settlement administration costs are estimated not to exceed \$9,490. Prior to the time of the final fairness hearing, the administrator must submit a declaration attesting to the total costs incurred and anticipated to be incurred to finalize the settlement for approval by the Court.

6. Attorney fees and costs

CRC rule 3.769(b) states: "Any agreement, express or implied, that has been entered into with respect to the payment of attorney fees or the submission of an application for the approval of attorney fees must be set forth in full in any application for approval of the dismissal or settlement of an action that has been certified as a class action."

Ultimately, the award of attorney fees is made by the court at the fairness hearing, using the lodestar method with a multiplier, if appropriate. (PLCM Group, Inc. v. Drexler (2000) 22 Cal.4th 1084, 1095-1096; Ramos v. Countrywide Home Loans, Inc. (2000) 82 Cal.App.4th 615, 625-626; Ketchum III v. Moses (2000) 24 Cal.4th 1122, 1132-1136.) Despite any agreement by the parties to the contrary, "the court ha[s] an independent right and responsibility to review the attorney fee provision of the settlement agreement and award only so much as it determined reasonable." (Garabedian v. Los Angeles Cellular Telephone Company (2004) 118 Cal.App.4th 123, 128.)

The question of whether Class Counsel is entitled to \$250,000 (33 1/3%) in attorney fees will be addressed at the fairness hearing when class counsel brings a noticed motion for attorney fees. Class counsel must provide the court with billing information so that it can properly apply the lodestar method and must indicate what multiplier (if applicable) is being sought as to each counsel.

Fee Split: N/A

Class

Counsel should also be prepared to justify the costs sought (capped at \$25,000) by detailing how they were incurred.

7.

Incentive Award

The Settlement Agreement provides for an enhancement award of up to \$7,500 to the named Plaintiff. In connection with the final fairness hearing, named Plaintiffs each must submit a declaration attesting to why he or she should be entitled to an enhancement award in the proposed amount. The named Plaintiff must explain why he or she “should be compensated for the expense or risk she has incurred in conferring a benefit on other members of the class.” (Clark v. American Residential Services LLC (2009) 175 Cal.App.4th 785, 806.) Trial courts should not sanction enhancement awards of thousands of dollars with “nothing more than pro forma claims as to ‘countless’ hours expended, ‘potential stigma’ and ‘potential risk.’ Significantly more specificity, in the form of quantification of time and effort expended on the litigation, and in the form of reasoned explanation of financial or other risks incurred by the named plaintiff, is required in order for the trial court to conclude that an enhancement was ‘necessary to induce [the named plaintiff] to participate in the suit’” (Id. at 806-807, italics and ellipsis in original.)

The Court will decide the issue of the enhancement awards at the time of final approval.